



File No.: EXP202210455

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 31, 2022, a complaint was filed with the Spanish Agency for Data Protection against ADS ABOGADOS and A.A.A. (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant requested the deletion of their personal data from the respondent on January 18 and 24, and March 11, 2022, without having received a response to date and without their personal data being deleted.

Along with the complaint, a copy of the requests made to the respondent, sent through the channel provided for exercising rights in the privacy policy of their website, is included. A copy of several communications sent by the respondent to the complainant's email address is also provided, which demonstrate the processing of their personal data and the neglect of the right to deletion exercised. Additionally, a copy of the emails sent by the complainant to the respondent is included: on February 21, 2021, they contacted ADS requesting information about the possibility of claiming mortgage expenses from financial entities; on March 3, 2021, they sent the assignment sheet to ADS; and on January 18, 2022, they sent an email to ADS giving them a deadline for the execution of the assignment and, in case of non-compliance, requesting that the request be rendered void and their data be canceled.

SECOND: The State Agency for Tax Administration was requested for the tax identification number of the respondent, receiving a response that the requested information could not be obtained.

THIRD: On October 6, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

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The Data Inspection has requested ADS ABOGADOS on two occasions through notifications sent by postal mail to the addresses c/ Eduardo Vicente, 7 in Madrid and Paseo de la Castellana 141 in Madrid, both of which were returned by the postal service noting "unknown" as the reason for the return.

On November 29, 2022, repeated calls were made to the phone number ***PHONE.1 listed on the website <https://www.adsabogadosfinancieros.com/> as the contact number for ADS ABOGADOS, without receiving a response. In some cases, the line was busy, and in others, the call rang without receiving a response.

On November 30, 2022, at 1:51 PM, a call was received on the professional number of the person responsible for the preliminary investigative actions, with whom the calls were made the previous day, from the line ***PHONE.1. The caller stated that they were calling from ADS ABOGADOS and inquired about the identity of the caller due to missed calls. The acting Subinspector identified themselves and informed that the reason for the calls was due to a request for information from the Data Inspection directed to ADS ABOGADOS that had been returned, and at that moment, the communication was cut

off.

On the same day at 10:04 PM, a call was received on the professional number of the person responsible for the preliminary investigative actions, with whom the calls were made the previous day, from the line ***PHONE.1. The caller stated that they were calling from ADS ABOGADOS and inquired about the identity of the caller due to missed calls. The acting Subinspector, after identifying themselves, informed that they had already received a call that was cut off and that the reason for the calls was due to a request for information from the Data Inspection directed to ADS ABOGADOS that had been returned. The caller stated that they would contact the Spanish Agency for Data Protection, with no communication received from that law firm.

On December 15, 2022, the Data Inspection requested the identifying data of the holder from the operator of the number ***PHONE.1, responding that the holder of that line is A.A.A. with NIF ***NIF.1.

On November 29, 2022, the acting Subinspector accessed the website www.adsabogadosfinancieros.com, verifying the existence of a "legal notice." Likewise, it was verified on January 25, 2023, that the "legal notice" was not located on the same page, with only the email address info@adsabogados.com appearing as contact information.

On January 30, 2023, A.A.A. was notified by postal notification to provide information and documentation regarding the claimed facts, receiving a written response stating that they do not have a copy of the statutes or foundational document or similar of the company ADS Abogados, that they are unaware of the identifying data of the members that make up the company ADS Abogados, and that they do not know who is responsible for the processing of

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data of the company ADS Abogados and is unaware of the actions carried out by the data controller in relation to the claimed facts.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR provides as follows:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

III

Preliminary Investigative Actions

Prior to the initiation of sanctioning actions, it is necessary to identify the alleged responsible party for the administrative infringement.

Article 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, regarding the initiation agreement in sanctioning procedures, establishes the following:

"1. The initiation agreement shall be communicated to the instructor of the procedure, with the transfer of any actions that exist in this regard, and shall be notified to the interested parties, understanding in all cases the accused as such. Likewise, the initiation shall be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

- a) Identification of the person or persons allegedly responsible.

..."

Due to the lack of the NIF of the complained party, it was requested from the Tax Agency for their identification.

The Tax Agency has responded to the Spanish Agency for Data Protection that it has been unable to locate the requested NIF, which aims to identify legal persons and entities without legal personality for tax purposes.

IV

Facts Subject to Complaint

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The claimant contacted the responding entity via email to act as attorneys in a claim for mortgage expenses against two financial entities. After several emails exchanged between both parties and given the time elapsed without results, the claimant addressed the responding entity requesting the deletion of their personal data (requests sent to the responding party on January 18 and 24, and March 11, 2022), through the channel provided for the exercise of rights in the privacy policy of their website (info@adsabogados.com).

However, despite the request for data deletion, the responding entity continued to send emails to the

claimant on dates subsequent to the deletion requests, the last being an email dated August 29, 2022, sent from info@adsabogados.com to the claimant.

Two requests for information have been sent by postal mail to the known addresses of the law firm ADS ABOGADOS, which were returned by the Postal Service noting "unknown" as the reason for the return.

The claimant has requested by phone that the responding entity inform them of the reason for the returns of the requests sent by postal mail without receiving a response.

V

Conclusion

Therefore, although the claim presented may constitute a violation of data protection regulations, it is not possible to initiate sanctioning actions due to the lack of tax identification of the alleged responsible party.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to ADS ABOGADOS and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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